

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

Complainants

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

Respondents

**COMPLAINANT 81ST DOLPHIN'S OBJECTIONS AND RESPONSES TO
RESPONDENT'S PROPOSED FINDINGS OF FACT**

Submitted by:

GILMAN ✱ ALLISON LLP
Douglas T. Gilman
Texas Bar No. 24048496
Federal I.D. No. 19897
2005 Cullen Blvd.
Pearland, Texas 77581
Telephone: (713) 224-6622
Facsimile: (866) 543-3643

**Attorneys for Complainants Santa Fe Discount Parking, Inc. d/b/a EZ Cruise Parking,
Lighthouse Parking, Inc., and Sylvia Robledo d/b/a 81st Dolphin Parking**

November 22, 2022

Complainant Sylvia Robledo d/b/a 81st Dolphin Parking (“81st Dolphin” or “Complainant”), pursuant to the Administrative Law Judge’s (“ALJ”) August 30, 2022 Remand Reconsideration Scheduling Order (“RRSO”), November 7, 2022 Order on Respondent’s Motion to Submit Supplemental Evidence and Complainant’s Request for an Extension of Time (“November 7th Order”), and 46 C.F.R. 502.221, and contemporaneous with the filing of Complainant 81st Dolphin’s Reply Brief on Limited Reparations Issue on Remand (“Reply Brief”) pursuant to the above-cited Orders, hereby submits these objections and responses to Respondent’s Proposed Supplemental Findings of Fact, filed on October 31, 2022.

OBJECTIONS AND RESPONSES
TO RESPONDENT’S PROPOSED SUPPLEMENTAL FINDINGS OF FACT

1. The following Findings of Fact issued by the Administrative Law Judge, Initial Decision On Remand, dated January 13, 2017, remain uncontested and germane to the resolution of this matter, and are referenced herein for inclusion and are incorporated by reference as if fully set forth at length as part of Respondent’s Supplemental Findings of Fact: AJF Findings of Fact Nos. 1-5, 9-11, 13-18, 19-20, 22-25, 27-46, 54-55, 57, 59, 63, 71-76, 78, 83.

RESPONSE: Denied. Complainant objects to this proposed finding of fact in its entirety. In its August 30, 2022 Remand Reconsideration Scheduling Order, the Honorable Judge clearly identified the requirements associated with submitting supplement proposed findings of fact. (RRSO at 3). Therein, the parties were clearly ordered that “[e]ach paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact...” (*Id.*). Here, Respondent attempts to incorporate more than fifty (50) distinct propositions of fact.

Complainant also objects to this proposed finding of fact to the extent Complainant has already objected to, filed exceptions to, and/or appealed (expressly or based upon) the identified findings

of fact. Complainant reasserts all such objections, exceptions, evidence, and/or arguments on appeal to each and all of the identified findings of fact as though fully set forth verbatim herein.

Complainant objects to the extent that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). Complainant objects to the extent this proposed finding of fact addresses, utilizes, or invokes any time period outside of the June 16, 2011 through July 31, 2014 reparations period. (See, e.g., Resp. PSFF 2, below). Complainant objects to the extent Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing.

Complainant objects to this proposed finding of fact to the extent that it is unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 ("Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.")). Respondent's omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement's veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant.

2. The relevant period for the determination of reparations due to Complainant under all claims subject to this remand is June 16, 2011, to July 31, 2014. (See Order on Initial Decision on Remand at 39).

RESPONSE: Complainant agrees that the reparations period is June 16, 2011 through July 31, 2014 for Respondent's violations of the Shipping Act.

3. The definition of commercial passenger vehicle in Tariff Circular No. 6 did not change from December 17, 2007, to June 20, 2014. (CR/R 001 at 000019; CR/R 002 at 000096; and CR/R 003 at 000167).

RESPONSE: Complainant agrees that the definition of Ground Transportation Company in Tariff Circular No. 6, Section 100, Item 111 remained consistent from December 17, 2007 (4th Revised

Page 3-I) through June 20, 2014 (5th Revised Page 3-I). (CR/R 002 at 000096-97; CR/R 003 at 000168; and Comp. App. 002 at CX/R 000009-10). Otherwise denied.

4. The definition of ground transportation company in Tariff Circular No. 6 did not change from December 17, 2007 to June 20, 2014. (CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000168).

RESPONSE: Complainant agrees that the definition of Ground Transportation Company in Tariff Circular No. 6, Section 100, Item 111 remained consistent from December 17, 2007 (3rd Revised Page 3-I) through June 20, 2014 (5th Revised Page 3-I). (CR/R 002 at 000097; CR/R 003 at 000168; and Comp. App. 002 at CX/R 000010). Otherwise denied.

5. The definition of off-port parking user in Tariff Circular No. 6 did not change since 2006. from December 17, 2007 to June 20, 2014. (CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000169).

RESPONSE: Complainant agrees that the definition of Off-Port Parking User in Tariff Circular No. 6, Section 100, Item 111 remained consistent from December 17, 2007 (3rd Revised Page 3-I) through June 20, 2014 (5th Revised Page 3-I). (CR/R 002 at 000097; CR/R 003 at 000169; and Comp. App. 002 at CX/R 000010). Otherwise denied.

6. Under Respondent's tariffs a limousine was defined as

LIMOUSINE means a motor vehicle operated for commercial purposes that shall not have a taximeter, which is a luxury sedan with a manufacturer's rated seating capacity of not more than fifteen (15) passengers that is used for the transportation of people.

(CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000169).

RESPONSE: Complainant agrees that the definition of a limousine represented in this proposed finding of fact is accurate for Tariff Circular No. 6, Section 100, Item 111 for the three versions of the Tariff and their respective effective dates cited by Respondent. Otherwise denied.

7. In order for any vehicle to access Respondent's Cruise Terminals to deliver and pick up passengers they had to have a port use permit. (CR/R 001 at CR/R 000016; CR/R 002 at 000091; and CR/R 003 at CR/R 000162).

RESPONSE: Complainant objects to this statement as a misstatement of the Tariff. Specifically, Tariff Circular No. 6 identifies that not all vehicles accessing “the property of the Galveston Wharves,” which includes the Cruise Terminal, must acquire a “Port Use Permit.” (CR/R 001 at CR/R 000016; CR/R 002 at 000091; CR/R 003 at CR/R 000164, 000168). The Tariff further identifies that certain “categories of business” must obtain a Port Use Permit for accessing Respondent’s non-Cruise Terminal areas, and for “conducting activities on or in connection with” any of Respondent’s property. (*Id.*).

Complainant also specifically objects that “permit” fees such as those for the Port Use Permit are beyond the scope of the permissible briefing. (*See* OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3).

8. Because all limousines were required to register for Port Use Permits and obtain decals from Respondent to be allowed access Respondent’s terminals, these fees constitute a fee for access as well as the per trip access fees charged such users. (CR/R 001 at CR/R 000016; CR/R 002 at 000091; and CR/R 003 at CR/R 000162).

RESPONSE: Denied. Complainant objects to this proposed finding of fact. Port Use Permits are required to be purchased by “categories of business” who do not access the Cruise Terminal. (CR/R 001 at CR/R 000016; CR/R 002 at 000091; CR/R 003 at CR/R 000164, 000168). Port Use Permits are for “conducting activities on or in connection with” any of Respondent’s property, not for Cruise Terminal access. (*Id.*). Even the Tariff itself, beyond the preceding quotations, identifies that Access Fees and Decal Fees are different from Port Use Permit Fees. (*See, e.g.,* CR/R 002 at 000094, “Note C” (identifying that only Decal Fees and Access Fees are limited to Ground Transportation Companies accessing the Cruise Terminal, not Port Use Permit fees)). Complainant objects that any “permit” fees are beyond the scope of the permissible briefing. (*See* OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). Complainant objects to Respondent’s attempt at including “Port Use Permits,” as also defined in the Tariff differently than the Access Fees at issue, into the definition of “Access Fees.” (*See id.*).

Additionally, Respondent cites to no evidence suggesting that Decal Fees are for any purpose other than recovery Respondent’s costs associated with issuing decals to vehicles that access any part of

the Port's property. Respondent is attempting to conflate the multiple different fees, expressly delineated in the Tariff, into "Access Fees." The ALJ will recall that Respondent's two violations of the Shipping Act which have been established pertain to "Access Fees" as referenced in the Tariff. Throughout this proceeding, Complainant, Respondent, the OALJ, the FMC, and the D.C. Circuit have all recognized the difference between the subject Access Fees, and Decal Fees. (See, e.g., Comp. Verified Complaint, at 7-8, 10-12, 15; Comp. First Amend. Verified Complaint, at 7-8, 10-12, 15; Comp. Orig. Br. (May 15, 2015), at 5, 10, 19, 23, 24, 31; Respondent's Obj. to Comp. PFF 24 (June 12, 2015); Comp. Original Reply Br. (June 24, 2015), at 16-19; Resp. Corr. Br. (June 12, 2015), at 16, fn.2, 24, 37, 40, 50; Initial Decision, at ALJFF 29, ALJFF 45, ALJFF 49, ALJFF 50; Initial Decision at 32, 35; Initial Decision on Remand at 21, 26, 38, 44, 46-47, 53, 66; *Santa Fe Discount Cruise Parking, Inc. v. Fed. Mar. Comm'n*, 889 F.3d 795, 797 (D.C. Cir. 2018).

For these reasons, and those identified in Complainant's Reply Brief filed contemporaneous herewith, Complainant denies any contention that the Access Fees forming the basis of this proceeding and Respondent's violations of the Shipping Act are comprised in any way of Port Use Permit fees, "permit" fees, "registration" fees, or Decal Fees.

9. The term "Port Use Permit" was defined in the Port's Tariffs at all times between September 1, 2006 and July 31, 2014 as

(18) PORT USE PERMIT means a valid (not suspended or revoked) and unexpired permit issued by the Port Director pursuant to this Tariff Item. A Port Use permit contains terms and conditions as described herein, or as may be amended from time to time. A Port Use Permit grants privileges (e.g., using Galveston Wharves property for commercial purposes, supplying services at the Galveston Wharves (Port of Galveston) for which fees are imposed. Both Port Use Permits and the more specialized contracts or leases mentioned in this Tariff are types of contracts.

(CR/R 001 at CR/R 000021; CR/R 002 at CR/R 000098; and CR/R 003 at 000170).

RESPONSE: Complainant objects that "permit" fees are beyond the scope of the permissible briefing. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). Otherwise, agreed.

10. From October 1, 2006 through December 17, 2007, the permit fees and fees charged for decals issued limousines accessing the Port's Cruise terminals

Note A. A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.

Note B. Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed necessary based on review of the applicant and type of business.

Note C. In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Limousines	\$10.00 per decal per vehicle, annually

(CR/R_001 at CR/R 000017).

RESPONSE: Denied in part, as identified in the following objections and response. Complainant objects to this proposed finding of fact because it mischaracterizes the language of the Tariff and is incomplete. (CR/R 001 at CR/R 000016-022). Complainant also objects that while the statement opening this proposed finding of fact implies that the following language identifies “the permit fees and fees charged for decals issued limousines,” neither the citation nor the included table reference or include “permit fees,” only Decal Fees and Access Fees.

Complainant objects to this proposed finding of fact in that it is an incomplete statement. If Respondent is representing that the referenced information represents the “permit fees and fees charged for decals issued” to limousines accessing the Cruise Terminal, Complainant further objects in that Respondent fails to identify the charges for any Port Use Permit fees to limousines, which are not identified on the cited-to pages. Additionally, under that version of the Tariff, limousines were defined as “a motor vehicle operated for commercial purposes that shall not have a taximeter, which is a luxury sedan with a manufacturer’s rated seating capacity of not more than 15 passengers that is used for the transportation of people.” (CR/R 001 at 000020).

Complainant also objects that “permit” fees are beyond the scope of the permissible briefing. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3).

11. From December 17, 2007, through December 31, 2013, the permit fees and fees charged for decals issued limousines accessing the Port’s Cruise terminals

Note A. A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.

Note B. Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed necessary based on review of the applicant and type of business.

Note C. In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Limousine or Taxi and Taxicabs with Seating Capacity of nine (9) to fourteen (14) persons (**Except as noted in Notes D & E, below)	\$10.00 per decal per vehicle, annually and \$10.00 per Access I Trip
Limousines with Seating Capacity of not more than eight (8) persons	\$10.00 per decal per vehicle, annually

(CR/R 002 at CR/R 000094).

RESPONSE: Denied in part, as identified in the following objections and response. Complainant objects to this proposed finding of fact because it mischaracterizes the language of the Tariff and is incomplete. (CR/R 002 at CR/R 000091-099). Complainant also objects that while the statement opening this proposed finding of fact implies that the following language identifies “the permit fees and fees charged for decals issued limousines,” neither the citation nor the included table reference or include “permit fees,” only Decal Fees and Access Fees.

Complainant objects to this proposed finding of fact in that it is an incomplete statement. If Respondent is representing that the referenced information represents the “permit fees and fees charged for decals issued” to limousines accessing the Cruise Terminal, Complainant further objects in that Respondent fails to identify the charges for any Port Use Permit fees to limousines, which are not identified on the cited-to pages. Additionally, under that version of the Tariff, limousines were defined as “a motor vehicle operated for commercial purposes that shall not have a taximeter, which is a luxury sedan with a manufacturer’s rated seating capacity of not more than fifteen (15) passengers that is used for the transportation of people.” (CR/R 002 at 000097).

Complainant would further identify that this proposed finding of fact explicitly differentiates between the “Port Use Permit” fee, fees for decals, and fees for access. For the Tariff referenced in this proposed finding of fact, Port Use Permit fees require “[a]n initial fee of \$250.00, and annual renewal fee of \$50.00” for certain “categories of business” identified in Tariff Circular No. 6, 10th Revision Page 3-C, Section 100, Item (C)(A)(I) 111. (CR/R 002 at 000091). Moreover, the Port Use Permit fee is for all such categories of business who are “conducting activities on or in connection with the property of the Galveston Wharves,” and is not limited to those accessing the Cruise Terminal at issue in this proceeding. (*Id.*). In addition to paying the initial and renewal fee for the Port Use Permit, applicants for same must obtain and submit to the Galveston Wharves “a Certificate of Insurance” showing proof of certain prescribed insurance limits and meeting additional criteria, including but not limited to naming The City of Galveston and the Board of Trustees of the Galveston Wharves “as ‘Additional Insureds’ with Waiver of Subrogation.” (CR/R 002 at 000091-093).

Complainant also objects that “permit” fees are beyond the scope of the permissible briefing. (*See* OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3).

12. From November 21, 2013, the fees charged for decals issued limousines accessing the Port’s Cruise terminals

Note A. A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.

Note B. Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed necessary based on review of the applicant and type of business.

Note C. In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Commercial Passenger Vehicle, Courtesy Vehicle, Shuttle or Limousine with Seating Capacity of less than fifteen (15) persons (**Except as noted in Notes D & E, below)	\$15.00 per decal per vehicle, annually and \$11.43 per Access I Trip

(CR/R 003 at CR/R 000165).

RESPONSE: Denied in part, as identified in the following objections and response. Complainant objects to this proposed finding of fact because it mischaracterizes the language of the Tariff and is incomplete. (CR/R 003 at 000162-170). Complainant also objects that while the statement opening this proposed finding of fact implies that the following language identifies “the permit fees and fees charged for decals issued limousines,” neither the citation nor the included table reference or include “permit fees,” only Decal Fees and Access Fees.

Complainant objects that Respondent’s representation of “Note B” is nowhere found in the citation given, nor in the Tariff cited, and “Note A” is not on the cited page. (See CR/R 003 at 000163-165). Complainant objects that this proposed finding of fact does not identify the Tariff’s Decal Fees or Access fees for limousines with a seating capacity of fifteen (15) or more persons. (See CR/R 003 at 000165).

Complainant would further identify that this proposed finding of fact explicitly differentiates between the “Port Use Permit” fee, fees for decals, and fees for access. For the Tariff referenced in this proposed finding of fact, Port Use Permit fees require an initial fee ranging between \$300.00 to \$120.00, and annual renewal fee ranging between \$75.00 to \$50.00 for certain “categories of

business” identified in Tariff Circular No. 6, 11th Revision Page 3-C, Section 100, Item (C)(A)(I) 111. (CR/R 003 at 000162-163). Moreover, the Port Use Permit fee is for all such categories of business who are “conducting activities on or in connection with the property of the Galveston Wharves,” and is not limited to those accessing the Cruise Terminal at issue in this proceeding. (CR/R 003 at 000162). In addition to paying the initial and renewal fee for the Port Use Permit, applicants for same must obtain and submit to the Galveston Wharves “a Certificate of Insurance” showing proof of certain prescribed insurance limits and meeting additional criteria, including but not limited to naming The City of Galveston and the Board of Trustees of the Galveston Wharves “as ‘Additional Insureds’ with Waiver of Subrogation.” (CR/R 003 at 000162-165).

Respondent’s cited-to evidence identifies that Decal Fees under this Tariff range between \$25.00 and \$7.50 annually, and Access Fees between \$22.86 and \$11.43 per trip, or \$8.00 per parking space located in an “Off-Port Parking User’s parking facility.” (CR/R 003 at 000165-166).

13. The permit/decal fees for limousine services and the vehicles used by those companies’ fleets registered with Respondent in 2011 was as follows:

2011	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/27/2011	Galveston Vehicle Escorts	\$120.00
2/2/2011	NIKKOS TRANSPORTATION	\$310.00
2/10/2011	ATLAS LIMO K.CLAYPOOL	\$70.00
2/10/2011	GREATER HOUSTON TRANS	\$395.00
2/10/2011	GREATER HOUSTON TRANS	\$115.00
2/11/2011	HARBOR EXPRESS SVS INC	\$280.00
2/11/2011	KARR LIMOUSINE SVS INC	\$190.00
2/28/2011	BLACK TIE LIMOUSINE	\$50.00
2/28/2011	CARLITOS TOWN CAR SERVI	\$50.00
3/28/2011	HOUSTON EXECUTIVE LIMO	\$150.00
4/11/2011	HOUSTON LIMO SERV	\$390.00
4/14/2011	AMERICAN TRANSPORTAION	\$80.00
4/15/2011	81ST DOLPHIN	\$80.00
4/15/2011	ENTERPRISE PKNG SERVICE	\$260.00
4/15/2011	C&S EXECUTIVE TRANSPOR	\$130.00
4/19/2011	AJ LIMO	\$110.00
4/26/2011	NIKKOS TRANSPORTATION	\$10.00
5/2/2011	ELITE LIMO	\$350.00
5/6/2011	TEXAS LIMO	\$150.00
5/11/2011	ACTION LIMO	\$150.00
5/11/2011	ACTION LIMO	\$250.00
5/19/2011	GALVESTON VEHICLE ESCO	\$10.00
6/2/2011	SAMS LIMOUISNE	\$170.00
6/3/2011	HORIZON COACH LIMOS	\$20.00
6/28/2011	MIKES LUXURY TRANSPORT	\$70.00
7/29/2011	ACTION LIMO	\$20.00
	Totals	\$3,890.00

(CR/R 004 at CR/R 000237; CR/R 078 at CR/R 000810 – 000811).

RESPONSE: Denied. Complainant objects to and denies the accuracy of the information contained in this proposed finding of fact for the reasons set forth below. However, as an initial matter, Complainant would identify for the Honorable Judge that the evidence Respondent cites to clearly differentiates between two types of fee assessments; those relating to “Security Cost Recovery-Access Fees” and those relating to “Security Cost Recovery-C/T-Permits.” (CR/R 004 at 000232 and 000234; CR/R 078 at 000807 and 000809).

Complainant objects that the citations provided by Respondent in support of this proposed finding of fact do not support or address the information contained in the proposed finding of fact. CR/R 004 is a range of pages pertaining to the year 2011, while CR/R 000237 is a page contained under tab CR/R 005 pertaining to the year 2012.

Complainant objects that the broadly-cited range comprising CR/R 004 does not identify “permit/decal fees,” and does not appear to be limited to “limousines services and the vehicles used by those companies’ fleets.” Instead, the cited-to pages represent to apply to “Security Cost Recovery-Access Fees” for hotels and Off-Port Parking Users. (CR/R 004). The sole exception is an entry under “Security Cost Recovery-C/T-Permits” for “Frank’s Limo Service” in the amount of \$170.00. (CR/R 004 at 000234). However, Respondent does not include “Frank’s Limo Service” in this proposed finding of fact, nor does Respondent or its cited-to evidence identify what the \$170.00 represents payment for.

Complainant objects that “permit” fees are beyond the scope of the permissible briefing. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). The Commission and ALJ have ordered the parties to limit their briefing to the issue of reparations for the two violations of the Shipping Act established, and have permitted the parties to address “Decal Fees,” if same are considered to affect the amount of reparations owed. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). For the duration of the reparations period (June 16, 2011 through July 31, 2014),¹ the Tariff contained a section entitled “OTHER

¹ See Respondents’ Proposed Supplement Findings of Fact No. 2, *supra*.

LICENSES AND PERMITS (C)(A)(I) 111,” wherein the various and separate “Port Use Permits,” “Decal Fess,” and “Access Fees” are identified. (CR/R 002 at 000091-96; Comp. App. 028 at CX/R 001079-1083).² Therein, the controlling tariffs identify that Port Use Permit requirements are not limited to Ground Transportation Companies who access the Cruise Terminal, but to a list of business categories “conducting activities on or in connection with the property of the Galveston Wharves.” (CR/R 002 at 000091; Comp. App. 028 at CX/R 001079). Accordingly, the Port Use Permit is not for access to the Cruise Terminal, but for “conducting activities on or in connection with” any property owned by the Galveston Wharves. (*Id.*). For this reason, notwithstanding the fact that Respondent has not identified for the Honorable Judge what the above-represented payments were for, any such payments for acquisition of a Port Use Permit should not be included in Respondent’s calculations.

Moreover, Respondent has not shown that any of the referenced companies purchased “Port Use Permits” or “Decal Fees” for “limousines,” as defined in the Tariff. For instance, and Complainant’s objection is not limited to these examples, there is no indication or showing that Nikkos Transportation, Greater Houston Trans, Harbor Express Svs Inc., American Transportation, Enterprise Pkng Service, C&S Executive Transport, Galveston Vehicle Esco, Mikes Luxury Transport, or any of the others which do include “limousine” or “limo” in their name, were actually purchasing “Port Use Permits” or “Decal Fees” for limousines as defined in the Tariff. Complainant further objects on this point because the evidence in the record indicates that of the entities listed above, the following included in their fleets vehicles which do not conform to the Tariff’s definition of a limousine: Action Limo (CR/R 016 at 000536; Comp. App. 029 at CX/R 001152-53); Karr Limousine Services, Inc. (Comp. App. 029 at CX/R 001167); Sams Limousine (Comp. App. 029 at CX/R 001171); and C&S Executive Transportation (CR/R 027 at 000578; Comp. App. 029 at CX/R 001176).

Accordingly, Respondent has not shown or established that the amounts included in Respondents table accompanying this proposed finding of fact reflect fees paid in relation to vehicles which do

² When citing to documents in Complainant’s (Nov. 22, 2022) Updated Appendix, citation will be to “Comp. App.” followed by the tab number, then followed by the page number/range (*e.g.*, “Comp. App. 027 at CX/R 001058”).

not meet the Tariff's definition of a limousine. (*See* Resp. Prop. Supp. Findings of Fact No. 6, *supra*).

14. Prorating the fees paid for 2011 to June 16, 2011 to December 31, 2011 leaves 198 days remaining in that year or 54.25%, or \$2,110.19 applicable for 2011.

RESPONSE: Denied. Complainant agrees with the proration calculations applied to the given numbers, but Complainant denies that Decal Fees or Port Use Permits affect in any way the calculation of reparations owed by Respondent to Complainant, and denies that \$3,890.00 represents the Decal Fees and/or Port Use Permit fees for the year 2011.

Complainant objects that “permit” fees are beyond the scope of the permissible briefing. (*See* OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3).

Complainant also objects that the data provided in Respondents' Proposed Supplemental Findings of Fact No. 13 provides any evidence, proof, or indication that the identified “fees” were paid for Decal Fees or in relation to vehicles accessing the Cruise Terminal during the reparations period of June 16, 2011 through July 31, 2014. Accordingly, Complainant denies that \$2,110.19 represented in this proposed finding of fact is accurate or relevant to any determination of reparations owed in this proceeding and objects to this proposed finding of fact in its entirety.

15. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2012 was as follows:

2012	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/9/2012	GALVESTON VEHICLE ESCO	\$140.00
1/18/2012	GALVESTON LIMO	\$230.00
1/27/2012	MIKES LUXURY TRANSPORT	\$70.00
1/31/2012	A AMBASSADOR LIMO	\$620.00
2/1/2012	HARBOR EXPRESS SVCS	\$100.00
2/8/2012	81ST DOLPHIN	\$80.00
3/6/2012	GALVESTON VEHICLE ESCO	\$10.00
3/6/2012	FRANKS LIMO SEDAN	\$150.00
3/8/2012	A AMBASSADOR LIMO	\$30.00
3/9/2012	AMERICAN TRANSPORT	\$70.00
3/12/2012	HOUSTON EXECUTIVE LIMO	\$150.00
3/19/2012	BLACKHORSE LIMO	\$320.00
3/19/2012	CYPRESS TOWNCAR	\$350.00
3/21/2012	ONYX LIMO	\$300.00
3/21/2012	ULTIMATE LIMO	\$290.00
3/23/2012	ONYX LIMO SVCS	\$10.00
3/23/2012	CAREY OF HOUSTON	\$200.00
3/23/2012	EMERALD LIMO	\$310.00
3/28/2012	HOUSTON LIMO	\$280.00
3/28/2012	C&S EXECUTIVES	\$120.00
3/28/2012	REPUBLIC LIMO	\$60.00
4/3/2012	CHEAP TOWN CAR AND LIMO	\$300.00
4/5/2012	24 HOUR KATY	\$290.00
4/5/2012	SHOA ZURI	\$280.00
4/5/2012	AA CORP TRANSPORTATION	\$270.00
4/9/2012	PRIDE LIMO	\$310.00
4/9/2012	AFC CORP TRANSPORTATIO	\$600.00
4/12/2012	AJ LIMO	\$10.00
4/14/2012	A AFFORDABLE SERVICES	\$310.00
4/16/2012	KNIGHT TRANSPORT	\$120.00
4/16/2012	TEXAS LIMO	\$150.00
4/17/2012	AJ LIMOUSINE	\$90.00
4/20/2012	dunic limo	\$280.00
4/25/2012	EE LIMOS	\$280.00
4/30/2012	CTI TRANSPORTATION	\$330.00
	Totals	\$7,510.00

(CR/R 079 at CR/R 000814 – 000815).

RESPONSE: Denied. Complainant objects to this proposed finding of fact because it gives no basis or support showing that the entities identified in the table accompanying the statement provided “limousine services.” Complainant denies that all of the entities listed in this proposed finding of fact paid the “Permit” fees represented for Limousines as defined by the Tariff. Complainant objects that the statement and table accompanying the statement seek to identify Complainant as a “limousine service.” Complainant objects that the table accompanying the statement does not indicate that it represents “permit/decal fees,” and so does not support the proposed statement of fact. Complainant objects that fees for Port Use Permits are included in these numbers despite “permit” fees being beyond the scope of the permissible briefing. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at

2; ALJ’s Nov. 7, 2022 Order at 3). Respondent has not identified what the above-represented payments were for. Any such payments for acquisition of a Port Use Permit should not be included in Respondent’s calculations.

16. The permit/decal fees for limousine services and the vehicles used by those companies’ fleets registered with Respondent in 2013 was as follows:

2013	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/10/2013	AJ LIMO	\$90.00
1/11/2013	KARR LIMO SVCS	\$240.00
1/11/2013	DUNIC LIMO	\$70.00
1/23/2013	BLACKHORSE LIMO AND CH	\$140.00
1/30/2013	CTI TRANSPORTATION	\$110.00
1/31/2013	S. HOUSTON LIMO, TC, & SU	\$260.00
1/31/2013	ACTION LIMO	\$250.00
1/31/2013	ACTION LIMO	\$250.00
2/3/2013	HOUSTON EXECUTIVE LIMO	\$150.00
2/3/2013	GALVESTON LIMO	\$170.00
2/4/2013	CAREY OF HOUSTON	\$200.00
2/14/2013	PRIDE LIMO	\$10.00
2/14/2013	SAM'S LIMO	\$190.00
2/14/2013	CYPRESS TOWNCAR	\$180.00
3/5/2013	LONESTAR LIMO	\$80.00
3/6/2013	C&S EXECUTIVE	\$130.00
3/6/2013	LUXIMO LIMO	\$260.00
3/25/2013	EMERALD LIMO	\$110.00
3/26/2013	KRYSTALIA LIMO	\$90.00
4/16/2013	LIMO & TOWN CAR SERVICE	\$310.00
4/23/2013	LONE STAR LIMO	\$10.00
5/19/2013	TOTALLY TX LIMO	\$140.00
5/23/2013	ROYAL LIMO & TOWN CAR	\$320.00
7/5/2013	ACTION LIMO	\$30.00
7/18/2013	KARR LIMO	\$20.00
8/5/2013	LIMO & TOWNCAR SRV	\$310
9/26/2013	81ST DOLPHIN S.ROBLEDO	\$80.00
	Totals	\$4200.00

(CR/R 080 at CR/R 000820 – 000821).

RESPONSE: Denied. Complainant objects to this proposed finding of fact because it gives no basis or support showing that the entities identified in the table accompanying the statement provided “limousine services.” Complainant denies that all of the entities listed in this proposed finding of fact paid the “Permit” fees represented for Limousines as defined by the Tariff. Complainant objects that the statement and table accompanying the statement seek to identify Complainant as a “limousine service.” Complainant objects that the table accompanying the statement does not indicate that it represents “permit/decal fees,” and so does not support the proposed statement of fact. Complainant objects that fees for Port Use Permits are included in

these numbers despite “permit” fees being beyond the scope of the permissible briefing. (*See* OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). Respondent has not identified what the above-represented payments were for. Any such payments for acquisition of a Port Use Permit should not be included in Respondent’s calculations.

17. The permit/decal fees for limousine services and the vehicles used by those companies’ fleets registered with Respondent in 2014 was as follows:

2014	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/8/2014	81ST DOLPHIN	\$105.00
1/14/2014	Karr Limo	\$305.00
1/16/2014	Totally Texas Limo Service	\$175.00
1/16/2014	Royal Limo & Town Car	\$135.00
1/16/2014	Knight Transport	\$145.00
1/22/2014	American Transport Co	\$135.00
1/23/2014	HOUSTON EXECUTIVE LIMOS	\$185.00
1/31/2014	Galveston Limo/A Limo Service	\$185.00
2/19/2014	CYPRESS TOWN CAR & LIMO	\$135.00
3/6/2014	HOUSTON CITY LIMO AIM CHART	\$125.00
3/19/2014	CTI TRANSPORTATION LLC	\$165.00
4/16/2014	REPUBLIC LIMOUSINE	\$95.00
4/16/2014	BLACKHORSE LIMO	\$205.00
5/1/2014	C&S EXECUTIVE TRANSPORTAT	\$295.00
5/28/2014	AVANTI TRANSPORTATION	\$395.00
6/6/2014	TRANSGATE LIMO	\$360.00
6/6/2014	24 HR KATY LIMO	\$105.00
6/18/2014	CHERRY LIMO TRANSPORTATIO	\$115.00
7/9/2014	S HOUSTON LIMO & TOWN CAR	\$60.00
7/18/2014	ONYX LIMO SERV	\$115.00
7/22/2014	ACTION LIMO	\$545.00
7/24/2014	GURU RAMDASS	\$90.00
7/30/2014	Z LIMO SERV INC	\$390.00
7/30/2014	GULF COAST LIMO SERV	\$150.00
7/30/2014	Z LIMO SERV INC	\$390.00
7/30/2014	GULF COAST LIMO SERV	\$150.00
7/30/2014	PRIDE LIMO SERV	\$120.00
7/31/2014	MERLO'S LIMOUSINES	\$100.00
	Totals	\$ 5,475.00

(CR/R 081 at CR/R 000825 – 000826).

RESPONSE: Denied. Complainant objects to and denies the accuracy of the information submitted in this proposed finding of fact for the reasons set forth below. However, as an initial matter, Complainant would identify for the Honorable Judge that the evidence Respondent produced clearly differentiates between two types of fee assessments; those relating to “Security

Cost Recovery-Access Fees” and those relating to “Security Cost Recovery-C/T-Permits.” (CR/R 081 at 000822 and 000825).

Complainant also objects to this proposed finding of fact because it gives no basis or support showing that the entities identified in the table accompanying the statement provided “limousine services,” or what the identified fees represent (*e.g.*, Port Use Permit fees or Decal Fees). Complainant objects that the statement and table accompanying the statement seek to identify Complainant as a “limousine service.” Complainant objects that neither the table accompanying the statement nor the evidence in the record cited to indicate “permit/decal fees,” but instead identify “SECURITY COST RECOVERY-C/T-PERMITS & FEE.” Because of this, there is no indication as to what the identified payments were for, and so does not support the proposed finding of fact.

Additionally, Respondent has not shown that any of the referenced companies paid “Port Use Permit” fees or “Decal Fees” for “limousines,” as defined in the Tariff. (*See* CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000169 (defining “limousine”); *see also* Resp. Proposed Supp. Finding of Fact No. 6). For instance, and Complainant’s objection is not limited to these examples, there is no indication or showing that Knight Transport, American Transport Co., CTI Transportation LLC, C&S Executive Transportation, Avanti Transportation, Guru Ramdass, or the other entities which do include “limousine” or “limo” in their company name, were actually purchasing “Port Use Permits” or “Decal Fees” for limousines as defined in the Tariff, as opposed to other vehicles. Complainant further objects on this same point because the evidence in the record indicates that of the entities listed in this proposed finding of fact, the following entities included in their fleets vehicles which do not conform to the Tariff’s definition of a limousine: Karr Limousine Services, Inc. (Comp. App. 029 at CX/R 001167); Galveston Limousine Service (CR/R 045 at 000671); C&S Executive Transportation (CR/R 027 at 000578; Comp. App. 029 at CX/R 001176); Avanti Transportation (CR/R 022 at 000559); Transgate Limo (CR/R 072 at 000787); Action Limo (CR/R 016 at 000536; Comp. App. 029 at CX/R 001152-53); Z Limo Serv Inc (CR/R 076 at 000801, 000803, 000805); Merlo’s Limousines (CR/R 056 at 000707, 000710-711). Because each of these entities are shown to have registered and/or accessed the Cruise Terminal with buses or other vehicles not conforming to the Tariff’s definition of a “limousine,” and because Respondent has not produced any evidence showing that the identified payments were

made by these entities for limousine access to the Cruise Terminal, there is no evidentiary support for this proposed finding of fact.

Moreover, “permit” fees are beyond the scope of the permissible briefing established by the Commission and the ALJ’s orders, and agreed to by the parties. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). The Commission and FMC have ordered the parties to limit their briefing to the issue of reparations for the two violations of the Shipping Act established, and have permitted the parties to address “Decal Fees,” if same are considered to affect the amount of reparations owed. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). For the duration of the reparations period (June 16, 2011 through July 31, 2014),³ the Tariff contained a section entitled “OTHER LICENSES AND PERMITS (C)(A)(I) 111,” wherein the various and separate “Port Use Permits,” “Decal Fees,” and “Access Fees” are identified. (CR/R 002 at 000091-96; Comp. App. 028 at CX/R 001079-1083). Therein, the controlling tariffs identify that Port Use Permit requirements are not limited to Ground Transportation Companies who access the Cruise Terminal, but to a list of business categories “conducting activities on or in connection with the property of the Galveston Wharves.” (CR/R 002 at 000091; Comp. App. 028 at CX/R 001079). Accordingly, the Port Use Permit is not for access to the Cruise Terminal, but for “conducting activities on or in connection with” any property owned by the Galveston Wharves. (*Id.*). Notwithstanding the fact that Respondent has not identified for the Honorable Judge what the above-represented payments were for, any such payments for acquisition of a Port Use Permit should not be included in Respondent’s calculations.

Complainant further objects to this proposed finding of fact on grounds that it is inaccurate, and inflates the numbers represented. For instance, Respondent includes two entries for Z LIMO SERV INC at \$390.00 and two entries for GULF COAST LIMO SERV at \$150.00. However, review of the documents submitted identify that this is a double-billing, as the first-listed charges for those two entities were refunded or otherwise voided. (CR/R 081 at CR/R 000826).

In addition to the above, through this proposed finding of fact, Respondent has disclosed additional Shipping Act violations it has committed. In Respondents’ Proposed Supplemental Finding of

³ See Respondents’ Proposed Supplement Findings of Fact No. 2, *supra*.

Fact No. 30, Respondent identifies forty-eight (48) purported limousine services that it claims to have collected Access Fees from between January 1, 2014 to [July 31], 2014. (See Resp.'s PSFF 30). Of those forty-eight (48) purported limousine services, Respondent, in this proposed finding of fact, admits and submits evidence showing that it failed to enforce the Tariff's requirements pertaining to the use of Port Use Permits and Decal Fees against twenty-four (24)—*half*—of the alleged limousine service entities that accessed the Cruise Terminal. (See Resp.'s PSFF 30; see also CR/R 081 at CR/R 000822 – 000826).

18. Respondent had begun charging access fees to limousine services again as early as January 1, 2014, and consistently in June 1, 2014 and continued to do so through July of 2014. Access and charges of limousines in June and July of 2014 are also evidenced in the individual reports for each of the limousine companies included in Respondent's Supplemental Appendix Nos. 014 - 076.

RESPONSE: Complainant objects that the cited-to evidence does not support this proposed finding of fact.

Additionally, Complainant would also identify for the Honorable Judge that this proposed finding of fact clarifies the subject of the brief, in that Respondent here admits that "Decal Fees" are not "access fees." Specifically, in the preceding proposed findings of fact, Respondent submits evidence intending to show fees collected by Respondent from limousines for Port Use Permit fees and Decal Fees. (See, e.g., CR/R 028 at 000580 (showing billing \$250.00 to entity for "Port User License – New Application Fee"); *but see id.* at 000581 (showing billing for Access Fees at \$20.00 per trip); see also CR/R 001 at 000016 (showing Port User Permit fee of \$250.00 at the time relating to CR/R 028 at 000580). In this proposed finding of fact, Respondent identifies that, while it only began collecting Access Fees from limousines "as early as January 1, 2014." Accordingly, Respondent is again⁴ admitting that it did not collect Access Fees from limousines prior to January 1, 2014.

⁴ In Respondent's prior briefing, Respondent admits to not collecting the Access Fees prescribed by the Tariff from limousines between 2007 and 2014. (Resp. Corr. Br. (Jun. 12, 2015) at pg.21, fn.5; Resp. Corr. PFF (Jun. 12, 2015) at pg.25, RPFF 99-100).

Complainant objects that the evidence Respondent cites to in support of this proposed finding of fact identifies for the Honorable Judge that Respondent was not only charging limousines less than the Tariff-required Access Fees, but also that it was not even collecting those sub-Tariff rates. (See CR/R 021 at 000550 – 551 (charged purported limousines \$9.00 for nine (9) trips into the Cruise Terminal, but did not allocate or collect charges for those nine trips from the company).

Complainant would also bring to the Honorable Judge’s attention that the evidence Respondent cites to in this proposed finding of fact identifies additional violations of the Shipping Act. For instance, CR/R 028, CR/R 031, CR/R 035, CR/R 041, CR/R 042, CR/R 053, CR/R 056, CR/R 060, CR/R 063, CR/R 066, CR/R 068, and CR/R 070 show that the identified Cruise Terminal users were never charged renewal fees for their Port Use Permits for the years 2011, 2012, 2013, and/or 2014, in violation of the applicable Tariffs which required annual renewal fees to be paid.

Complainant further objects that the only entities in the cited-to evidence for which Access Fees were charged “as early as January 1, 2014” were “Clear Lake Shuttle Bus,” “Lone Star,” and “Royal Carriages, Inc.” (See CR/R 032; CR/R 055; CR/R 062). However, Respondent has placed no evidence in the record suggesting that any of those entities operated, or were accessing the Cruise Terminal with, limousines as defined in the applicable Tariff. Instead, these entities, as represented in Respondent’s own documents, purport to have been operating and accessing the Cruise Terminal with busses, not limousines. (See, *e.g.*, CR/R 032 at 000609, 000610, and 000612 (identifying that the Access Fees are for “Bus” access to the Cruise Terminal); CR/R 055 (with the exception of a single trip in July 2014 identified at CR/R 055 at 000704); CR/R 062 at 000740-742). Accordingly, CR/R 032, 055, and 062 do not support Respondent’s proposed finding of fact.

Complainant also objects that several of the cited-to documents do not pertain to Access Fees for limousines at all. (See, *e.g.*, CR/R 017; CR/R 022 at 000559; CR/R 024; CR/R 031; CR/R 035; CR/R 036; CR/R 040; CR/R 044; CR/R 045 at 000671; CR/R 046; CR/R 047; CR/R 049; CR/R 053; CR/R 055; CR/R 056; CR/R 060; CR/R 062; CR/R 073; CR/R 074; and CR/R 075 (vehicles charged \$50.00 or \$60.00 per trip Access Fee); *see also* CR/R 002 at 000094). The vehicles identified in the preceding citations were busses, not limousines, and so these identified documents do not support Respondent’s proposed finding of fact either.

Additionally, the following cited-to documents pertain to time periods outside of the relevant reparations period: CR/R 014 at 000523-525; CR/R 016 at 000532-536; CR/R 018 at 000544-545; CR/R 021 at 000554-557; CR/R 022 at 000562; CR/R 023 at 000563-565; CR/R 026 at 000574; CR/R 027 at 000577-578; CR/R 028 at 000581-582; CR/R 029 at 000583-586; CR/R 030 at 000587-589; CR/R 032 at 000608-612; CR/R 033 at 613-614; CR/R 034 at 000625-627; CR/R 036 at 000631; CR/R 038 at 000634-638; CR/R 039 at 000639-642; CR/R 040 at 000643-645; CR/R 041 at 000648; CR/R 043 at 000652-653; CR/R 045 at 000660-670; CR/R 048 at 000676-678; CR/R 050 at 000682-683; CR/R 051 at 000684-685; CR/R 052 at 000688-689; CR/R 053 at 000693; CR/R 054 at 000696-697; CR/R 056 at 000709-712; CR/R 057 at 000716-719; CR/R 058 at 000720-722; CR/R 059 at 000725; CR/R 060 at 000729-731; CR/R 061 at 000732-734; CR/R 062 at 000745-748; CR/R 063 at 000752-754; CR/R 064 at 000755-757; CR/R 066 at 000762-763; CR/R 067 at 000764-768; CR/R 070 at 000778-780; CR/R 072 at 000783-787; CR/R 073 at 000790; CR/R 075 at 000796; and CR/R 076 at 000799-805. Accordingly, these identified documents also do not support Respondent's proposed finding of fact.

Accordingly, Complainant objects to the inclusion of the above-identified documents as support for this proposed finding of fact. Complainant would further identify for the Honorable Judge that the earliest date in 2014 shown in Respondent's cited-to documents when a purported (though not established as such by any evidence in the record) limousine was charged Access Fees was in May 2014, when nine (9) companies Respondent purports to operate limousines were logged as accessing the Cruise Terminal. (See CR/R 014 at 000522; CR/R 025 at 000569; CR/R 026 at 000573; CR/R 037 at 000635; CR/R 042 at 000651; CR/R 052 at 000687; CR/R 062 at 000743; CR/R 069 at 000774; and CR/R 071 at 000782).

19. Prorating the fees paid for 2014 through July 31, 2013, equals 212 days in that year or 58.08%, or \$3,180.00 applicable for 2014.

RESPONSE: Denied. Complainant objects to this proposed finding of fact on grounds that it is incorrect, misstates established facts, and is unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 ("Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.")). Respondent's omission of

citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant. Complainant also objects that this proposed finding of fact does not identify which of the myriad “fees” it is incorporating into its calculation. To the extent this proposed finding of fact is utilizing the “permit/decal fees for limousine services and the vehicles used by those companies’ fleets registered with Respondent in 2014,” as represented in Respondents’ Proposed Supplemental Finding of Fact No. 17, Complainant incorporates herein its objections and response to that proposed finding of fact, and identifies that the total “permit/decal fees” paid is incorrect for reasons of double-charges, inclusion of charges pertaining to non-limousines, inclusion of fees other than Decal Fees, and other reasons asserted therein. To the extent that this proposed finding of fact is utilizing the Access Fees alleged in Respondents’ Proposed Supplemental Finding of Fact No. 18, Complainant incorporates herein its objections and response to that proposed finding of fact for the reasons set forth therein, and identifies that the total Access Fees paid is incorrect.

Moreover, to the extent this proposed finding of fact is utilizing the “permit/decal fees” as referenced above herein, Complainant neither admits nor agrees with the proposition that Decal Fees or Port Use Permits affect in any way the calculation of reparations owed by Respondent to Complainant. Complainant objects that “permit” fees, or any fees beyond Access Fees or Decal Fees, are beyond the scope of the permissible briefing. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). Complainant also does not admit or agree that \$5,475.00 represents the Access Fees, Decal Fees, and/or Port Use Permit fees for the year 2014.

Complainant also objects to the extent Respondent is including days and/or fees paid in 2013 into this calculation.

20. The total registration and decal fees charged to limousines during the time period relevant to this proceeding, prorated for 2011 and 2014 is as follows:

2014*	\$3,180.00
2013	\$4,200.00

2012	\$ 7,510.00
2011*	\$ 2,110.19
Total	\$ 17,000.19

RESPONSE: Denied. Complainant objects to this proposed finding of fact on grounds that it is incorrect, misstates established facts, and is unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 (“Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.”). Respondent’s omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant.

Complainant objects to this proposed finding of fact on grounds that it has been shown to be inaccurate by Complainant’s objections and responses to Respondents’ Proposed Supplemental Finding of Fact Nos. 13 through 19 above, which objections and responses are wholly incorporated and reasserted herein. The dollar amount of each entry in the table accompanying this proposed finding of fact is incorrect, and no evidence has been submitted which supports the assertion that the identified charges were for “registration” fees, “decal fees,” or for “limousines” as defined by the Tariff. Moreover, Complainant objects that Respondent’s inclusion of undefined “registration” fees is beyond the scope of the permissible briefing, and should not be included in any calculation relating to Access Fees or Decal Fees. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). In addition to the foregoing, Respondent has not supported with citation to evidence any delineation as to which of the above-purported “registration and decal fees” was for the undefined “registration” fees, Port Use Permit fees, or Decal Fees. Accordingly, the numbers presented by Respondent are unsupported speculation, and through this proposed finding of fact, Respondent is attempting to have the Honorable Judge transmute assumption into fact.

21. From 2011 through 2014 Complainant paid \$345 in permits/decal fees to Respondents. Prorating 2011 and 2014 reduces the applicable fees to:

2011	\$ 43.40
2012	\$ 80.00
2013	\$ 80.00
2014	\$ 60.94
Total	\$ 264.34

(CR/R 004 at CR/R 000237; CR/R 078 at CR/R 000810 – 000811; CR/R 079 at CR/R 000814 – 000815; CR/R 080 at CR/R 000820 – 000821; CR/R 081 at CR/R 000825 – 000826).

RESPONSE: Complainant objects to and denies this proposed finding of fact. As an initial objection, Respondent’s inclusion of undefined “permit” fees extends beyond the scope of the permissible briefing; only Access Fees and Decal Fees may be considered and briefed to the extent they affect the reparations owed to Complainant. (*See* OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). To the extent “permit” fees are comprised of Port Use Permit fees, Complainant objects to their inclusion in this proposed finding of fact and the numbers represented.

For the duration of the reparations period (June 16, 2011 through July 31, 2014),⁵ the Tariff contained a section entitled “OTHER LICENSES AND PERMITS (C)(A)(I) 111,” wherein the various and separate “Port Use Permit” fees, “Decal Fees,” and “Access Fees” are identified. (*See, e.g.*, CR/R 002 at 000091-96; Comp. App. 028 at CX/R 001079-1083). Therein, the controlling tariffs identify that Port Use Permit requirements are not limited to Ground Transportation Companies, or to entities who access the Cruise Terminal, but instead apply to a list of business categories “conducting activities on or in connection with the property of the Galveston Wharves.” (*See, e.g.*, CR/R 002 at 000091; Comp. App. 028 at CX/R 001079). Accordingly, the Port Use Permit is not for access to the Cruise Terminal, but for “conducting activities on or in connection with” any property owned by the Galveston Wharves. (*Id.*). For this reason, notwithstanding the fact that Respondent has not identified for the Honorable Judge what the above-represented payments were for, any such payments for acquisition of a Port Use Permit, or any other “permit” or “registration” fee, should not be included in Respondent’s calculations.

⁵ *See* Respondents’ Proposed Supplement Findings of Fact No. 2, *supra*.

Complainant also objects to the citations provided by Respondent. CR/R 000237 is not part of CR/R 004 as cited, nor does CR/R 000237 support any proposition contained in this proposed finding of fact. CR/R 078 at CR/R 000810-811 identifies only that on April 15, 2011, Complainant paid \$80.00 for “SECURITY COST RECOVERY-C/T-PERMITS,” but does not identify what the nature of that permit(s) the payment was made for. (CR/R 078 at 000809-810). CR/R 079 at CR/R 000814-000815 identifies only that on February 8, 2012, Complainant paid \$80.00 for “SECURITY COST RECOVERY-C/T-PERMITS,” but does not identify what the nature of that permit(s) the payment was made for. CR/R 080 at CR/R 000820-000821 identifies only that on September 19, 2013, Complainant paid \$80.00 for “SECURITY COST RECOVERY-C/T-PERMITS,” but does not identify what the nature of that permit(s) the payment was made for. CR/R 081 at CR/R 000825-000826 identifies only that on January 8, 2014, Complainant paid \$105.00 for “SECURITY COST RECOVERY-C/T-PERMITS & FEE,” but does not identify what the nature of that permit(s) the payment was made for.

22. Prior to 2008, the Wharves invoiced limousines accessing the Cruise Terminal. However, with a few exceptions, limousines are typically from out of town and access the terminal irregularly; some accessed the Cruise Terminal two times a week while others did so two times a year. Compared to local users, such as the Complainants, overall access by limousines to the Cruise Terminal was quite small. (CR/R008 at CR/R 000251).

RESPONSE: Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). The FMC has already addressed Respondent’s arguments relating to the comparative frequency of use between Complainant and limousines. (See Order on Pet. for Reconsideration (Jun. 2, 2022) at 10-12). Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing.

23. Historically, the Port determined that it had been difficult to get limousines to pay these fees. Attempting collection efforts for such small fees was deemed not to be economically feasible by the Port. (CR/R008 at CR/R 000251).

RESPONSE: Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). The Commission has already addressed Respondent's arguments relating to the comparative frequency of use between Complainant and limousines. (See Order on Pet. for Reconsideration (Jun. 2, 2022) at 10-12). Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing.

24. Limousines business differ from Complainants in that they do not provide for on-site parking during customer cruises, they infrequently access the terminals and normally bring in customers from outside the City of Galveston. Id.

RESPONSE: Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). Whether limousines are similarly situated with Complainant has been decided by the Commission, and is not longer at issue in this proceeding. (Order Affirming ID's Dismissal of Complaint at 16-18; Order on ID on Remand at 11). Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing.

25. Hurricane Ike devastated Galveston Island in September of 2008. Id.

RESPONSE: Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing.

26. After the Port resumed cruise operations the individual at the entrance of the cruise terminals failed to record access by limousines. Id.

RESPONSE: Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). The Commission has already addressed this topic and determined it as fact. (Order on ID on Remand at 32-34).

Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing.

27. This error was not discovered until May of 2014 when the Port conducted a study of traffic to and fees charged for access to the terminals. (CR/R 008 at CR/R 000251 – 000252). There is no evidence of an intentional effort by Respondent to not charge limousines the additional access fee otherwise due under the Tariffs.

RESPONSE: Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). The Commission has already addressed this topic and determined it as fact. (Order on ID on Remand at 32-34). Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing.

28. Following the discovery of this error in May of 2014, the Port corrected this and began charging limousines as of June 1, 2014. Id.

RESPONSE: Denied. Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). The Commission has already addressed this topic and determined it as fact. (Order on ID on Remand at 32-34). Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing. Additionally, Respondent admitted that it did not resume charging limousines Access Fees until August 2014. (Resp. Corr. Br. (June 12, 2015), at pg.23, fn.6).

29. Several limousines were charged fees in 2014 prior to June 1, 2014. (CR/R 022 at CR/R 000558; CR/R 027 at CR/R 000575; CR/R 031 at CR/R 000590; CR/R 044 at CR/R 000654; CR/R 075 at CR/R 000793).

RESPONSE: Denied. Not a single one of the cited-to documents supports this proposed finding of fact.

The only documented Access Fees for dates prior to June 1, 2014 contained in those documents are for buses, not limousines as defined by the Tariff. (See, CR/R 022 at 000559 (showing Access Fees of \$50.00 per trip); CR/R 031 at 000591 (showing Access Fees of \$50.00 per trip); CR/R 044 at 00655 (showing Access Fees of \$50.00 per trip); CR/R 075 at 000794 (showing Access Fees of \$50.00 per trip); *see also* CR/R 002 at 000094 (identifying that “Limousines” were not charged Access Fees of \$50.00 per trip); CR/R 002 at 000097 (defining “Limousine”).

30. From January 1 to June 30, 2014 Respondent charged registered limousine services the following access charges:

Date	Name	Amount
1/27/2014	Sam's Limousine	\$600.00
3/31/2014	Karr Limo	\$ 150.00
4/30/2014	C&S Exec. Transp.	\$ 50.00
4/30/2014	Galveston Limousine Service	\$ 400.00
6/17/2014	Karr Limo	\$ 100.00
6/17/2014	Galveston Limousine Service	\$ 400.00
6/19/2014	24 HR. Katy Limousine	\$ 50.00
6/19/2014	AA Corporation	\$ 60.00
6/19/2014	Absolute Luxury Limousines	\$ 10.00
6/19/2014	Black Tie Limousine	\$ 10.00
6/19/2014	Blackhorse Limo	\$ 10.00
6/19/2014	Colony Limousine	\$ 40.00
6/19/2014	Devine Towncar & Limo	\$ 10.00
6/19/2014	Elite Limousines of Houston	\$ 10.00
6/19/2014	Extreme Elegance	\$ 10.00
6/19/2014	Houston Express Limo	\$ 10.00
6/19/2014	Karr Limo	\$ 50.00
6/19/2014	Superior Limousine & Transp	\$ 10.00
6/19/2014	Town Car Limo	\$ 10.00
6/30/2014	24 HR. Katy Limousine	\$ 20.00
6/30/2014	Absolute Luxury Limousines	\$ 10.00
6/30/2014	Abiding Limousine	\$ 20.00
6/30/2014	Action Limousine	\$ 100.00
6/30/2014	AIM Limousine	\$ 20.00
6/30/2014	American Transport	\$ 9.00
6/30/2014	Blackhorse Limo	\$ 20.00
6/30/2014	C&S Exec. Transp.	\$ 20.00

6/30/2014	Dimensions by Dan	\$ 20.00
6/30/2014	Elite Limousines of Houston	\$ 10.00
6/30/2014	Karr Limo	\$ 60.00
6/30/2014	Onyx Limousine Service	\$ 40.00
6/30/2014	Space Town Transportation	\$ 20.00
7/31/2014	ABIDING LIMOUSINE	\$20.00
7/31/2014	ACTION LIMOUSINE, INC.	\$20.00
7/31/2014	AIM LIMOUSINE	\$20.00
7/31/2014	AMERICAN TRANSPORT	\$40.00
7/31/2014	AIRPORT TRANSPORTATION	\$10.00
7/31/2014	BLACKHORSE LIMO	\$10.00
7/31/2014	CORPORATE LIMOUSINE	\$10.00
7/31/2014	MERLO'S LIMOUSINES	\$10.00
7/31/2014	ONYX LIMOUSINE SERVICE	\$30.00
7/31/2014	SPACE TOWN	\$20.00
	TRANSPORTATIO	
7/31/2014	SOUTH HOUSTON LIMOUSINE	\$10.00
7/31/2014	TOTALLY TEXAS LIMOUSINE	\$20.00
7/31/2014	24 HR. KATY LIMOUSINE	\$10.00
7/31/2014	AMERICAN STANDARD	\$10.00
	LIMOUSIN	
7/31/2014	SHIF LIMOUSINE	\$10.00
7/31/2014	Z LIMOUSINE SERVICES INC.	\$60.00
	Total	\$2,669.00

(CR/R_081 at CR/R 000822 – CR/R 000825).

RESPONSE: Complainant objects to this proposed finding of fact because the numbers represented are incorrect, and Respondent has provided no evidence that the entities represented in this proposed finding of fact are “registered limousine services,” as opposed to entities accessing the Cruise Terminal with buses and/or other non-limousines vehicles. For example, of the entities listed, evidence in the record identifies that the following entities were accessing the Cruise Terminal with vehicles which did not meet the Tariff’s definition of a limousine: C&S Exec. Transp. at \$70.00 (CR/R 027 at 000578; Comp. App. 029 at CX/R 001176); Galveston Limousine Service at \$800.00 (CR/R 045 at 000671; CR/R 081 at 000824 (identifying Galveston Limousine Service was accessing Cruise Terminal with buses, not limousines); Comp. App. 029 at CX/R 001152-53); Action Limousine at \$120.00 (CR/R 016 at 000536; Comp. App. 074 at CX/R 001152-1153); Z Limousine Services Inc. at \$60.00 (CR/R 076 at 000801, 000803, 000805).

Moreover, Complainant objects to Respondent's claim that the identified entities were "registered limousine services." Complainant would identify for the Honorable Judge that of the forty-eight (48) purported limousine services listed in this proposed finding of fact which Respondent claims represents those that it collected Access Fees from between January 1, 2014 and June 30, 2014, Respondent's own prior Respondents' Proposed Supplemental Finding of Fact No. 17, and the evidence cited and produced by Respondent, show that Respondent did not collect Port Use Permit fees or Decal Fees from at least twenty-four (24)—half—of them. (See Resp.'s Proposed Supp. Finding of Fact No. 17; *see also* CR/R 081 at 000822-826). This is an admission to the ALJ by Respondent, demonstrating that Respondent did not enforce the Tariff against half of the purported limousine services that accessed the Cruise Terminal between January 1, 2014 and July 31, 2014. This is yet another violation of the Shipping Act.

Additional incorrect representations made in this proposed finding of fact include the entry "6/17/2014 Karr Limo \$100.00." The document cited to in the record identifies that this entry was not a payment made by Karr Limo, but a refund of \$100.00 to Karr Limo from its March 31, 2014 payment of \$150.00. (CR/R 081 at 000824-825). Additionally, the entry of "6/17/2014 Galveston Limousine Service \$400.00" was likewise a refund to that entity of \$400.00 from an April 30, 2014 payment, and identifies for the Honorable Judge that Galveston Limousine Service was, at least in 2014, accessing the Cruise Terminal with buses, not limousines. (CR/R 081 at 000824). Accordingly, these two corrections alone reduce Respondent's unsupported, denied, and objected to proposed finding of fact by \$1,000.00.

Accordingly, for the reasons given and supported above, Complainant denies this proposed finding of fact, and objects to it in its entirety.

31. During the time period including June 2011 through June 30, 2014, the \$8 per space per month fee was applied as follows:

Those Off-Port Parking Users, as defined herein, in operation and accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27, collectively the Cruise Ship Terminal Complex, as of August 15, 2006 shall, in lieu of the Access/ Trip fee, be subject to a monthly Access Fee equal to ***the amount of \$8.00 per parking space located in the Off-Port Parking User's parking facility. . . .***

(CR/R 002 at CR/R 000094).

RESPONSE: Complainant objects to this proposed finding of fact on grounds that it is in incomplete representation of the applicable Tariff(s).

32. The \$8 per space fee for spaces located in the Off-Port Parking User parking facility such as the one Complainant operated was a negotiated fee which arose out of Complainant and other Off-Port Parking Users refusal to pay a per trip charge to the Port during 2005 through 2006. (CR/R 009 at CR/R 000346 – 000347).

RESPONSE: Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). Respondent is attempting to re-litigate issues already decided and outside the scope of permissible briefing.

33. The \$8 per space rate charged to Complainant resulted in significant cost savings to her during the years. (CR/R 009 at CR/R 000353).

RESPONSE: Denied. Complainant denies that the Access Fees she paid amounted to “significant cost savings” compared to the preferential treatment given to limousines in violation of the Shipping Act.

34. In 2014 Complainant’s monthly fee increased to \$780 due to her admission that she was using 96 spaces per month. (CR/R 013 at CR/R 000428).

RESPONSE: Denied. Complainant objects to Respondent’s calculation of the Access Fees charged to and paid by Complainant in 2014 as incorrect. Complainant admits that it paid a total of \$5,376.00 in Access Fees (\$768.00 per month) to Respondent for Cruise Terminal access between January 1, 2014 and July 31, 2014.

35. From July of 2005 through July of 2006 Complainant accessed the cruise terminals with its shuttles an average of 224 times per month which would have resulted in total access fees at the then in effect tariff of \$2,240.00. (CR/R 82 at CR/R 000828).

RESPONSE: Denied. Complainant objects to this proposed finding of fact on several grounds. First, the evidence cited to by Respondent is unsourced and does not identify from where the data was derived. (See CR/R 082 at 000828). The evidence in the record establishes that for the years

2005 and 2006, Complainant's access to the Cruise Terminal was only tracked from July 2005 through the end of June 2006. (See Comp. App. 030 and 031 (showing total Access Fees charged for those years—notably not including Decal Fees)). From this data, the correct monthly average for that twelve-month period is 212 trips per month. (*Id.*) Second, Complainant objects that no evidence is in the record identifying what Complainant's Access Fees were during this time-period, and the evidence cited to by Respondent does not address Access Fees.

Notwithstanding the above, Complainant would identify for the Honorable Judge that in the proposed finding of fact, Respondent again admits that "total access fees" do not take into account Decal Fees or other fees paid, but are determined solely by the number of times a vehicle accessed the Cruise Terminal.

36. The \$400 monthly flat fee rate, if applied to July 2005 through July 2006 would be the equivalent of only charging Respondent the sum of \$1.80 per trip. *Id.*

RESPONSE: Denied. Complainant also objects to this proposed finding of fact on grounds that it is based solely on speculation, and does not take into account business operations and strategies which, under the hypothesized scenario, Complainant might have governed its business by in the referenced twelve-month period. This statement of Respondent's is a speculation, not a fact.

37. The Port's expert Jeffery Compton opined using access numbers for Complainant in 2014 that in two months alone, Complainant saved over \$5,790.00 with the \$8 per space fee compared to the per trip rate charged others in the Tariffs:

81st Dolphin

A			B = A x 10		C		D = C x 8		E = B - D	
Month	Trips per Month (Note E)	Access Fee at \$10/Trip			Parking Spaces per Lot (Note F)	Access Fee at \$8/Parking Space			Savings Under Fixed Rate of \$8/Parking Space	
Oct-14	385	\$ 3,850			135	\$ 1,080			\$ 2,770.00	
Nov-14	410	\$ 4,100			135	\$ 1,080			\$ 3,020.00	
		<u>\$ 7,950</u>				<u>\$ 2,160</u>			<u>\$ 5,790</u>	

(CR/R 009 at CR/R 000362).

RESPONSE: Denied. This proposed finding of fact misrepresents the subject it communicates. During October and November 2014, Complainant did not pay Access Fees of \$8 per space per month; Complainant paid Access Fees per trip. (See Resp. PSFF 38, below). Accordingly, Complainant did not save “over \$5,790.00 with the \$8 per space fee.”

38. In October and November Complainant was under the new September 2014 Tariff and charged on a per trip basis the same as all other users of the Port. (CR/R 008 at CR/R 000250).

RESPONSE: Complainant objects to this proposed finding of fact, as it is incorrect and misstates the Access Fee payment scheme established in the governing tariff. Not all “users of the Port” were charged Access Fees on a per trip basis under “the new September 2014 Tariff.” (See, e.g., Comp. App. 027 at CX/R 001058; Comp. App. 019 at CX/R 000483-489 (Wharves Tariff Circular No. 6)). Complainant agrees that in October and November of 2014, it was operating under the governing tariff and paid its Access Fees on a per trip basis.

39. Had Complainant still been charged the flat rate for October and November of 2014, \$780 per month, the average fee paid by Complainant would have been \$1.96 per access (795 trips divided by two months of flat rate totaling \$1,560.00).

RESPONSE: Denied. Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). October and November of 2014 are irrelevant to the considerations before the Honorable Court, as the agreed and ordered reparations period spans from June 16, 2011 through July 31, 2014. (See, e.g., Resp. PSFF 2).

Complainant also objects to this proposed finding of fact as being speculative and irrelevant. Respondent’s established violations of the Shipping Act are twofold: (1) Respondent selectively enforced the Tariff, permitting limousines access to the Cruise Terminal without charging them Access Fees as prescribed by the Tariff; and (2) granting limousines preferential treatment under the Tariff by not requiring them to pay Access Fees. Accordingly, the correct phrasing of this proposed statement of fact is: “Had Complainant been charged the same Access Fees as limousines, Complainant would not have been charged Access Fees during the reparations period.”

Complainant further objects to this proposed finding of fact on grounds that it is unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 (“Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.”)). Respondent’s omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant. Additionally, there is no evidence in the record to support Respondent’s contention that Complainant paid \$780.00 per month in Access Fees.

40. In 2006 Complainant realized savings of \$13,910.00 from the \$8 per space fee. CR/R 009 at CR/R 000361).

RESPONSE: Denied. Had the Tariff imposed the same Access Fees on Complainant that it imposed on limousines, Complainant would have paid zero (\$0.00) dollars in Access Fees. Therefore, being charged \$8.00 per parking space per month for 120 parking spaces, Complainant was injured in the amount of \$5,760.00 during that time period. (See Comp. App. 020 at CX/R 000513; *see also* CR/R 009 at 000361).

Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3).

41. In 2005 and 2006 Complainant’s shuttles accessed the terminals an average 224 times a month. (CR/R 082 at CR/R 000828).

RESPONSE: Denied. Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). Complainant’s access to the Cruise Terminal in 2005 and 2006 is irrelevant to the considerations before the Honorable Court, as the agreed and ordered reparations period spans from June 16, 2011 through July 31, 2014. (See, *e.g.*, Resp. PSFF 2).

Complainant also objects to this proposed finding of fact because it is an assumption, not a fact, based on fifty (50%) complete data. (CR/R 082)). The cited-to evidence identifies only six months of data for each year represented in this proposed finding of fact. Respondent is proposing the Honorable Judge transmute an assumption into a fact. This proposed finding of fact is also incomplete, as it does not identify the schedule of cruise ships calling on the Cruise Terminal during that time-frame.

Moreover, Complainant objects to this proposed finding of fact because the evidence cited to by Respondent is unsourced and does not identify from where the data was derived. (*See id.*). The evidence in the record establishes that for the years 2005 and 2006, Complainant's access to the Cruise Terminal was only tracked from July 2005 through the end of June 2006. (*See Comp. App.* 030 and 031). From this data—again, which represents only 50% of the time-period expressed by this proposed finding of fact—the correct monthly average for that twelve-month period (not the twenty-four-month period forwarded by this proposed finding of fact) is 212 trips per month. (*Id.*)

42. Using Complainant's 2006 and 2014 documented access frequency as a minimum guide Complainant realized a minimum savings from June 2011 through June 2014 between \$41,700 (3 years based on 2016 frequency) to \$104,220 (3 years based on 2014 frequency average per month). CR/R 009 at CR/R 000361 – 000362).

RESPONSE: Denied. Complainant objects that this proposed finding of fact is irrelevant and superfluous to the limited issues under consideration. (*See* OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ's Nov. 7, 2022 Order at 3). The time-periods that Respondent is deriving its data from are January through July 2006 and October and November 2014. Those time-periods are irrelevant to the considerations before the Honorable Court, as the agreed and ordered reparations period spans from June 16, 2011 through July 31, 2014. (*See, e.g.,* Resp. PSFF 2). Complainant objects to this proposed finding of fact because it is based on extended speculation, not facts. Neither of the brief windows of time that Respondent utilizes in this hypothetical scenario are relevant to the reparations period at issue (June 16, 2011 through July 31, 2014). (*See* Resp. PSFF 2 (identifying relevant reparations period)). Respondent is asking the Honorable Judge to declare as fact an assumption of annual access frequency for 2006 based on seven (7) months of recorded access, and for 2014 based on

two (2) months of recorded access, and then to extend those two incomplete snapshots over a six (6) year period. The frequency of Cruise Terminal use by Complainant and other Ground Transportation Companies varied greatly throughout the year based on the number of cruise ships Respondent was able to attract to its port. (CR/R 008 at 000280-281, 000339; Comp. App. 032; Comp. App. 023). Claiming as fact an assumption based on such strikingly incomplete and variable data is improper.

43. Complainant waived and did not appeal the Commission's rulings regarding the charging of the \$8 per space fee or the savings realized by Complainant. (See Order on Initial Decision on Remand at 31.)

RESPONSE: Denied. Complainant objects to this proposed finding of fact on grounds that it is incorrect and unsupported by the citation given. Had the Tariff imposed the same Access Fees on Complainant that it imposed on limousines, Complainant would have paid zero (\$0.00) dollars in Access Fees. Therefore, being charged \$8.00 per parking space per month throughout the reparations period, Complainant was injured in the amount of \$17,576.00, for which damages reparations are sought. (See CR/R 010 at 000380-410; CR/R 011 at 000411-417; CR/R 078 at 000807-809; CR/R 079 at 000812-814; CR/R 080 at 000817-820; CR/R 081 at 000822-825).

44. From June 2011 through December 2011, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$2,800.00 (7 months @\$400 per space per month based on 50 spaces). CR/R 010 at CR/R 000379 – CR/R 000385). Prorating June of 2011, the \$400 fee applicable to June 16, 2011, through June 30, 2011 (15 of 30 days) was \$200.00. This resulted in a total charge of \$2,600.00 during the relevant period of time for that year.

RESPONSE: Denied that Complainant was charged "12 months @\$400 per space per month based on 50 spaces." Complainant agrees that the total Access Fees invoiced and paid by Complainant for June 2011 through December 2011 was \$2,800.00. Complainant further agrees that prorating June 2011 for the relevant reparations period reduces Complainant's total Access Fees from \$2,800.00 to \$2,600.00 for June 2011 through December 2011.

45. From January 2012 through December 2012, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$4,800.00 (12 months @\$400 per space per month based on 50 spaces). (CR/R 010 at CR/R 000386 – 000397).

RESPONSE: Denied that Complainant was charged “12 months @\$400 per space per month based on 50 spaces.” Complainant agrees that the total Access Fees invoiced to and paid by Complainant for January 2012 through December 2012 was \$4,800.00.

46. From January 2013 through December 2013, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$4,800.00 (12 months @\$400 per space per month based on 50 spaces). (CR/R 010 at CR/R 000408 – 000409).

RESPONSE: Denied that Complainant was charged “12 months @\$400 per space per month based on 50 spaces.” Complainant agrees that the total Access Fees invoiced to and paid by Complainant for January 2013 through December 2013 was \$4,800.00.

47. From January 2014 through July 30, 2014, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$5,376.00 (1 month @ \$8 per space per month based on 50 spaces, and 5 months @ \$8 per space based on 96 spaces). CR/R 010 at CR/R 000410; CR/R 011 at CR/R 000411 – CR/R 000415).

RESPONSE: Denied. Complainant objects to this proposed finding of fact on grounds that it is incorrect and the evidence cited does not support the statement. From January 2014 through July 2014, Complainant was invoiced for 96 parking spaces at \$8.00 per parking space, producing seven (7) invoices in the amount of \$768.00 per month, each of which was paid. (CR/R 011 at 000411-417). Accordingly, from the beginning of 2014 through July 31, 2014, Complainant was invoiced and paid a total of \$5,376.00 in Access Fees to Respondent. (*Id.*).

48. The total amount invoiced Complainant by Respondent from June 16, 2011, through July 31, 2014 totaled \$17,566.00.

RESPONSE: Denied. The total Access Fees invoiced by Respondent and paid by Complainant from June 2011 through July 2014 was \$17,776.00. (CR/R 010 at 000380-410; CR/R 011 at 000411-417; CR/R 078 at 000807-809; CR/R 079 at 000812-814; CR/R 080 at 000817-820; CR/R

081 at 000822-825). Prorating the Access Fees paid for June 2011 to account for the relevant reparations period, the total Access Fees invoiced by Respondent and paid by Complainant during the June 16, 2011 through July 31, 2014 reparations period was \$17,576.00. (*Id.*).

Complainant objects to this proposed finding of fact on grounds that it is unsupported by citation to the record. (*See* ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 (“Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.”). Respondent’s omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant.

49. Though Complainant was only charged for 50 lots from June 2011 to February of 2014, Complainant admitted that her lot actually had 135 spaces. (CR/R 013 at CR/R 000428).

RESPONSE: Denied. Complainant was invoiced and paid Access Fees at \$8.00 per parking space for fifty (50) parking spaces from June 2011 through December 2013. (CR/R 010 at 000380-410). Complainant was invoiced and paid Access Fees for ninety-six (96) parking spaces from January 2014 through July 2014. (CR/R 011 at 000411-417).

50. Complainant stated in her deposition that because she didn’t fill up her lot she only used 50 spaces, (CR/R 013 at CR/R 000428) even though the Port’s Tariff was based on the number of spaces in her lot, being 135. (CR/R 002 at CR/R 000094).

RESPONSE: Denied. This proposed finding of fact misstates the testimony. Complainant objects to this proposed finding of fact as incomplete and misleading. The time-frame being discussed, and the evidence being presented during the identified deposition was for May 2014, and Complainant identified that 96 parking spaces were allotted to cruise parking. (CR/R 013 at 000427-429). Complainant also objects that this proposed finding of fact is irrelevant to the limited issues permitted to be briefed.

51. Prior to this Complainant attempted to have Respondent only charge her for 30 of the 135 spaces but was unsuccessful. (CR/R 013 at CR/R 000450).

RESPONSE: Complainant admits that she “talked about” the possibility of Respondent charging her for thirty (30) parking spaces at some point in time. (CR/R 013 at 000450-451). Otherwise, denied.

52. Complainant agreed in 2014 to increase the spaces charged to 96 from 50 increasing the flat fee from \$400 to \$780 per month. (CR/R 013 at CR/R 000428 and CR/R 011 at CR/R 000411 – 000415).

RESPONSE: Denied. Complainant objects to Respondent’s representation that Complainant was charged Access Fees at \$780.00 per month for 96 parking spaces at \$8.00 per parking space per month. From January 2014 through the end of the reparations period, the total Access Fees invoiced to and paid by Complainant were \$5,376.00, at \$768.00 per month. (CR/R 011 at 000411-417). During the preceding months comprising the remainder of the reparations period, the total Access Fees invoiced to and paid by Complainant were \$400.00 per month (\$8.00 per parking space per month for 50 parking spaces). (CR/R 010 at 380-410).

53. A 2014 aerial photograph of Complainant’s lot reflects over 100 cars on her lot, even though she was only paying for 96 cars. CR/R 013 at CR/R 000475 and CR/R 013 at CR/R 000428 – 000430).

RESPONSE: Denied. Ninety-six (96) or fewer vehicles are depicted on Complainant’s lot. (CR/R 013 at 000475).

54. The difference between the \$17,576.00 charged to Complainant under the \$8 per space per month tariff rate and the \$2,669.00 access fees charged to limousines during that time period is \$14,907.00.

RESPONSE: Denied. Complainant objects to this proposed finding of fact as incorrect, misleading, and unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 (“Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.”). Respondent’s omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and

perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant.

Complainant agrees that it was invoiced and paid a total of \$17,576.00 in Access Fees (accounting for prorating June 2011) during the reparations period of June 16, 2011 through July 31, 2014.

Complainant denies Respondent's representation that limousines paid \$2,669.00 in Access Fees during the reparations period, and such statement is unsupported by citation to evidence. To the extent that Respondent derives that number from Respondents' Proposed Supplemental Finding of Fact No. 30, Complainant adopts and reasserts all objections and responses to that proposed finding of fact as though restated verbatim herein. Complainant objects also to this proposed finding of fact because the numbers represented are incorrect, and Respondent has provided no evidence that the entities represented in this proposed finding of fact are "registered limousine services," as opposed to entities accessing the Cruise Terminal with buses and/or other non-limousines vehicles. For example, of the entities listed, evidence in the record identifies that the following entities were accessing the Cruise Terminal with vehicles which did not meet the Tariff's definition of a limousine: C&S Exec. Transp. at \$70.00 (CR/R 027 at 000578; Comp. App. 029 at CX/R 001176); Galveston Limousine Service at \$800.00 (CR/R 045 at 000671; CR/R 081 at 000824 (identifying Galveston Limousine Service was accessing Cruise Terminal with buses, not limousines); Comp. App. 029 at CX/R 001151-52); Action Limousine at \$120.00 (CR/R 016 at 000536; Comp. App. 029 at CX/R 001152-1153); Z Limousine Services Inc. at \$60.00 (CR/R 076 at 000801, 000803, 000805).

Moreover, Complainant objects to Respondent's claim that the identified entities were "registered limousine services." Complainant would identify for the Honorable Judge that of the forty-eight (48) purported limousine services listed in this proposed finding of fact which Respondent claims represents those that it collected Access Fees from between January 1, 2014 and June 30, 2014, Respondent's own prior Respondents' Proposed Supplemental Finding of Fact No. 17, and the evidence cited and produced by Respondent, show that Respondent did not collect Port Use Permit fees or Decal Fees from at least twenty-four (24)—half—of them. (See Resp.'s Proposed Supp. Finding of Fact No. 17; *see also* CR/R 081 at 000822-826). This is an admission to the ALJ by Respondent, demonstrating that Respondent did not enforce the Tariff against half of the purported

limousine services that accessed the Cruise Terminal between January 1, 2014 and July 31, 2014. This is yet another violation of the Shipping Act.

Additional incorrect representations made in this proposed finding of fact include the entry “6/17/2014 Karr Limo \$100.00.” The document cited to in the record identifies that this entry was not a payment made by Karr Limo, but a refund of \$100.00 to Karr Limo from its March 31, 2014 payment of \$150.00. (CR/R 081 at 000824-825). Additionally, the entry of “6/17/2014 Galveston Limousine Service \$400.00” was likewise a refund to that entity of \$400.00 from an April 30, 2014 payment, and identifies for the Honorable Judge that Galveston Limousine Service was, at least in 2014, accessing the Cruise Terminal with buses, not limousines. (CR/R 081 at 000824). Accordingly, these two corrections alone reduce Respondent’s unsupported, denied, and objected to proposed finding of fact by \$1,000.00.

Accordingly, for the reasons given and supported above, Complainant denies this proposed finding of fact, and objects to it in its entirety.

Additionally, and significantly, Complainant would identify for the Honorable Judge that Respondent is here again admitting that Access Fees are not the same as Decal Fees. The evidence cited to in support of Respondents’ Proposed Supplemental Finding of Fact No. 30 is found under a section of CR/R 081 entitled “SECURITY COST RECOVERY-ACCESS FEES.” (CR/R 081 at 000822-825). However, in Respondents’ Proposed Supplemental Finding of Fact No. 17, Respondent is attempting to demonstrate to the Honorable Judge that certain entities paid “permit/decal fees,” and cites to a separate section of CR/R 081 entitled “SECURITY COST RECOVERY-C/T-PERMITS & FEES.” (CR/R 081 at 000825-826). Accordingly, Respondent is identifying for the Honorable Judge that Access Fees and Decal Fees are not the same.

55. The total permit or decal fees charged to registered limousines to allow them to access Respondent’s Cruise Terminals (\$16,835.85 after excluding amounts paid by Complaint for these fees) and the access fees charged to limousines during the time relevant to this matter (\$2,669.00) totals \$19,504.85.

RESPONSE: Denied. Complainant objects to this proposed finding of fact as incorrect, misleading, and unsupported by citation to the record. (See ALJ Remand Reconsideration

Scheduling Order, Aug. 30, 2022, at pg.3, para.2 (“Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.”). Respondent’s omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant.

Complainant adopts and reasserts all denials, objections, argument, and evidence contained in Complainant’s responses and objections to Respondents’ Proposed Supplemental Findings of Fact Nos. 13, 14, 15, 16, 17, 19, 20, 21 and 54 as though fully stated herein.

The evidence cited by Respondent does not identify which, if any, of the incorporated “SECURITY COST RECOVERY-C/T-PERMITS & FEES” were charged in relation to “limousines” as defined in the Tariff, and which, if any, were Decal Fees versus other fees. Briefing has been strictly limited by order of the Commission and ALJ, and agreement of the parties, to two types of fees: Access Fees and Decal Fees. (See OADR at 40; ORJSR (April 20, 2021) at 1; ORJSR (Aug. 8, 2022) at 2; RRSO (Aug. 30, 2022) at 2; ALJ’s Nov. 7, 2022 Order at 3). Respondent provides no method of determining the Decal Fees paid by entities providing limousine service to the Cruise Terminal, or a method for identifying which Decal Fees collected from those entities were for “limousines” as defined by the Tariff versus non-“limousines,” from the evidence cited. Accordingly, Complainant denies and objects to this proposed finding of fact in its entirety.

56. The difference in total fees charged to Complainants to access the terminals during the relevant period, \$17,576.00, and the total fees charged to limousines to access the terminals during the relevant period is \$1,928.85 more charged to limousines than Complainants during the relevant period.

RESPONSE: Complainant agrees that the total Access Fees charged to Complainant during the reparations period (prorating Access Fees for June 2011) was \$17,576.00. Otherwise, this proposed finding of fact is denied.

Complainant objects to this proposed finding of fact on grounds that it is incorrect, misstates established facts, and is unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 (“Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.”)). Respondent’s omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant.

To the extent Respondent derives the “total fees charged to limousines” from Respondents’ Proposed Supplement Findings of Fact Nos. 13, 14, 15, 16, 17, 19, 20, 21, 30, 54, and/or 55, Complainant adopts and asserts all denials, objections, argument, and evidence contained in Complainant’s responses and objections to those proposed findings of fact as though fully set forth verbatim herein.

While Complainant and the ALJ are left to make assumptions as to Respondent’s calculations and the data included therein, Complainant would show through its objections, argument, and evidence contained in its responses and objections to Respondents’ Proposed Supplement Findings of Fact Nos. 13, 14, 15, 16, 17, 19, 20, 21, 30, 54 and 55, that this proposed finding of fact is incorrect, is further based upon incorrect and/or nonexistent data, and seeks to expand the scope of evidence and briefing ordered by the Commission and ALJ, and agreed to by the parties.

57. In June and July of 2014 limousines accessed the cruise terminals a total of 129 times (extrapolating the fees charged limousines for those months and the per trip fee set forth in the tariffs).

RESPONSE: Denied. The basis of Respondent’s October 31, 2022 Opposed Motion for Leave to Include Supplemental Records Regarding Decal Fees was to avoid extrapolating the Decal Fees paid during the reparations period. (Resp. Opp. Mot. for Leave (Oct. 31, 2022) at pg.6, para.12). Nevertheless, Respondent is asking the Honorable Judge to make assumptions based upon extrapolations, and declare the result a fact to suit its preference.

Complainant objects to this proposed finding of fact on grounds that it is incorrect, misstates established facts, and is unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 (“Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.”). Respondent’s omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant.

To the extent this proposed finding of fact derives data or conclusions from Respondents’ Proposed Supplemental Finding of Fact No. 30, Complainant adopts and reasserts all denials, objections, argument, and evidence contained in Complainant’s responses and objections to those proposed findings of fact as though fully set forth verbatim herein.

Complainant also objects to this proposed finding of fact on grounds that Respondent’s calculations are based on incorrect data and assumptions, and are themselves incorrect.

First, the Honorable Judge will recall Respondent’s judicial admission to the fact that during June and July 2014, it charged all vehicles accessing the Cruise Terminal (with the exception of Off-Port Parking Users) only \$10.00 per trip, regardless of the vehicle’s class or size. (Resp. Corr. Br. (Jun. 12, 2015) at pg.21, fn.5).⁶ Based on this judicial admission alone, this proposed finding of fact must be denied, as no assumption can be made as to the size or class of any vehicle accessing the Cruise Terminal in June or July 2014. Respondent has admitted that the basis of this proposed finding of fact is unreliable and unknown.

⁶ “Despite the change, the Port did not receive the benefit of this change until after the 2013 -2014 review of cruise terminal access issues by Port staff (discussed below) disclosed an inadvertent failure to collect the higher amounts charged for larger buses and shuttle vans required by the amended Tariff. Specifically the employee responsible for counting vehicles accessing the terminal apparently was not aware of the higher rates, and charged all such vehicles a \$10 access fee per trip regardless of the size – in violation of the Tariff. As a result, some commercial users paying access fees on a per-trip basis were charged less than they should have been charged. This oversight was corrected in August 2014, when a new employee took over the position.” (citations omitted).

58. If limousines had been charged the same per trip average fee that the flat rate charged to Complainant then the limousines collectively would have been charged between \$232.20 to \$252.84 per month collectively or \$2,786.40 to \$3,034.08.

RESPONSE: Complainant again objects to this proposed finding of fact on grounds that it is incorrect, misstates established facts, and is unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 (“Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.”). Respondent’s omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement’s veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant. Complainant also objects that this proposed finding of fact does not identify basic necessary information, such as the time-period to which it is intended to apply.

Complainant was not charged a “per trip average fee,” and so objects to this factual misrepresentation. To the extent Respondent is invoking the substance of Respondents’ Proposed Supplemental Finding of Fact Nos. 36 and/or 39, Complainant adopts and reasserts all denials, objections, argument, and evidence contained in Complainant’s responses and objections to that proposed findings of fact as though fully set forth verbatim herein. Additionally, to the extent Respondent is invoking the substance of Respondents’ Proposed Supplemental Finding of Fact No. 57, Complainant adopts and asserts all denials, objections, argument, and evidence contained in Complainant’s responses and objections to that proposed findings of fact, inclusive of those responses and objections made to Respondents’ Proposed Supplemental Finding of Fact No. 30, as though fully set forth verbatim herein. Complainant cannot otherwise guess at where the numbers used by Respondent in this proposed finding of fact come from, and again objects to Respondent’s failure to provide the required citation.

Complainant further objects that this proposed finding of fact is irrelevant and immaterial to the limited topics at issue. It is a hypothetical musing with no application to facts beyond the opportunity to “muddy the water.”

Accordingly, for the reasons cited and referenced, this proposed finding of fact is incorrect, contrary to Respondent's prior judicial admissions and pleadings, and should be denied.

59. In October and November 2014 Complainant accessed the cruise terminals 795 times.

RESPONSE: Complainant objects to this proposed finding of fact on grounds that it is both irrelevant and unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 ("Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.")). Respondent's omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement's veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant. Additionally, as established by the Commission, ALJ, and agreed to by the parties, the relevant time-period, the reparations period, is July 16, 2011 through July 31, 2014. (See, e.g., Resp. PSFF 2, above). Complainant's access to the Cruise Terminal in October and November of 2014 has no bearing, and Respondent cites to no evidence creating a connection, to the reparation's period. Accordingly, this proposed finding of fact is irrelevant to the limited topics at issue.

60. Based on those numbers Respondent typically monthly accessed the terminal over 312% more times than all limousines registered with Respondent.

RESPONSE: Denied. Complainant objects to this proposed finding of fact on grounds that it is vague and ambiguous, incorrect, misstates established facts, and is unsupported by citation to the record. (See ALJ Remand Reconsideration Scheduling Order, Aug. 30, 2022, at pg.3, para.2 ("Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix.")). Respondent's omission of citation would require Complainant and the Honorable Judge to search through thousands of pages of documents to determine the limits of the statement's veracity. Requiring Complainant to search through the record and perform the duties the ALJ ordered Respondent to comply with would be unjust and disadvantageous to Complainant.

Complainant also objects that this proposed finding of fact is indecipherable, and Complainant does not know what Respondent is attempting to allege or communicate. Complainant objects that Respondent does not identify the time-period(s) to which this proposed finding of fact is intended to apply. To the extent this proposed finding of fact relies upon the substance of Respondents' Proposed Supplemental Findings of Fact Nos. 30, 57, 58, and/or 59, Complainant adopts and asserts all denials, objections, argument, and evidence contained in Complainant's responses and objections to that proposed findings of fact as though fully set forth verbatim herein.

Additionally, to the extent Respondent is included the entities identified in Respondents' Proposed Supplement Findings of Fact Nos. 18, 30, 54, 55, and/or 57 as "limousines" or "limousine service" providers, Complainant adopts and reasserts all denials, objections, argument, and evidence contained in Complainant's responses and objections to that proposed findings of fact as though fully set forth verbatim herein, and denies that all such entities and/or vehicles were "limousines," or that evidence exists to support such a conclusion. The assumptions and assertions underlying this proposed finding of fact are incorrect and unsupported by evidence.

Respectfully submitted,

GILMAN *ALLISON LLP



Douglas T. Gilman
Texas Bar No. 24048496
Federal I.D. No. 19897
Brenton J. Allison
Texas Bar No. 24040417
Federal I.D. No. 36863
Michael S. Prejean
Texas Bar No. 24092993
Federal I.D. No. 2513911
2005 Cullen Blvd.
Pearland, Texas 77581
Telephone: (713) 224-6622
Facsimile: (866) 543-3643

**Attorneys for Complainants Santa Fe
Discount Parking, Inc. d/b/a EZ Cruise
Parking, Lighthouse Parking, Inc., and
Sylvia Robledo d/b/a 81st Dolphin Parking**

CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this **22nd day of November, 2022**, and that a true and correct copy of the foregoing was served on all counsel of record **via** certified mail – return receipt requested and/or email, as indicated below:

Anthony P. Brown
MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.
P.O. Box 629
Galveston, Texas 77553

VIA EMAIL apbrown@mapalaw.com

**ATTORNEYS FOR RESPONDENTS
THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES
AND GALVESTON PORT FACILITIES CORPORATION**



Douglas T. Gilman